

Banshi Wale v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 21 August 2018 · WRIT - C No. - 27424 of 2018 · **Writ disposed; EE to consider 6.14 payment application in accordance with law**

HEADNOTE

Where a consumer accepts electricity dues in full and offers to pay under clause 6.14 of the U.P. Electricity Supply Code, 2005, the writ court may dispose of the petition by directing the Executive Engineer to consider and decide a payment application in accordance with law, without itself granting or refusing the installment facility.

FACTUAL SUMMARY

Banshi Wale petitioned the Allahabad High Court over electricity dues, impleading the State of Uttar Pradesh and the electricity department. On 18 August 2018 the Division Bench called the case and, none appearing for the petitioner, listed it as fresh for 21 August 2018, directing that it not be treated as part-heard. On that date counsel submitted that the petitioner accepted the entire electricity liability and was ready to pay under paragraph 6.14 of the U.P. Electricity Supply Code, 2005.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

installment payment of electricity dues

HOLDING

Where the consumer accepts the entire electricity dues and seeks to pay them under paragraph 6.14 of the U.P. Electricity Supply Code, 2005, the Court will not itself grant the installment facility on the writ; if an application for payment of the dues is made, the Executive Engineer is to consider and decide it in accordance with law. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER WAS ENTITLED TO INSTALLMENT FACILITY UNDER CLAUSE 6.14, AND THE QUANTUM OF THE DUES

The Court neither granted installments nor quantified the bill; it only directed the Executive Engineer to consider a payment application in accordance with law. ¶ 2